

Smt. Shashi Kala v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 2 December 2015 · Writ-C No. 65169 of 2015 · **Writ disposed; petitioner relegated to Clause 6.5(b) billing objection.**

HEADNOTE

A consumer disputing the accuracy of electricity bills raised by Torrent Power Limited, Agra was relegated to Clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The Division Bench noted that the consumer may pay under protest or complain to the competent authority, to be decided within seven days, and observed that if Clause 6.5 is invoked an appropriate decision shall be taken expeditiously.

FACTUAL SUMMARY

Smt. Shashi Kala petitioned the Allahabad High Court challenging electricity bills raised by Torrent Power Limited, Agra. She asserted she was not in arrears because the amounts shown in the bills had already been paid. Counsel for the power company submitted that a statutory remedy was available under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench of Dilip Gupta and Mukhtar Ahmad, JJ. disposed of the writ without examining whether the bills were outstanding.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy dispute; payment under protest or complaint to competent authority

HOLDING

Where a consumer disputes the accuracy of an electricity bill, Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the remedy of payment under protest or a complaint to the competent authority, which is to be decided within seven days; the High Court will not examine the billing dispute in writ jurisdiction and will relegate the consumer to that remedy, with a direction that if Clause 6.5 is invoked an appropriate decision be taken expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS IN ARREARS AND WHETHER THE BILLS RAISED BY TORRENT POWER LIMITED, AGRA WERE ACCURATE

Writ disposed without a merits finding; petitioner left to invoke Clause 6.5. ¶ 1